

CFES

*CANADIAN FEDERATION
OF ENGINEERING STUDENTS*



FCEG

*LA FÉDÉRATION CANADIENNE
ÉTUDIANTE EN GÉNIE*

Canadian Federation of Engineering Students

Electoral Bylaws

English Edition

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1 Definitions

Term	Definition
CFES	Abbreviation for the Canadian Federation of Engineering Students
Articles	The original or restated articles of incorporation or articles of amendment, amalgamation, continuance, reorganization, arrangement or revival of CFES.
Resolution	A motion presented as a proposal and approved by majority vote, or the applicable voting threshold if otherwise specified
Special Resolution	A Resolution approved by a two-thirds (2/3) majority vote
Member, Member Society	A recognized engineering student society representing students at a Canadian post-secondary institution that has been admitted to membership in the CFES in accordance with this Constitution
General Meeting	A meeting of the Members
CRO	The Chief Returning Officer, individual who is responsible for and the ultimate authority on election matters
Nomination Meeting	The General Meeting held before the Annual General Meeting for the purpose of selecting the slate of nominee candidates to fill upcoming vacancies.
Slate of Nominees	The slate of Leadership Team candidates selected by the Members at the Nomination Meeting for presentation at the Annual General Meeting.
National Executive	The President and Vice-Presidents
Leadership Team	The Directors and National Executive

2 Purpose

1. These Electoral Bylaws provide for:
 - (a) the selection by the Members of a preferred slate of Leadership Team nominees at a General Meeting held before the Annual General Meeting;
 - (b) the presentation of that slate to the Members at the Annual General Meeting for formal election;
 - (c) the collective election of the slate through a single ordinary resolution where

- the election is uncontested;
- (d) the continued right of Members to nominate additional eligible candidates from the floor at the Annual General Meeting; and
- (e) a fair election process where additional nominations result in more candidates than available Leadership Team positions.
- (f) The selection of the Slate of Nominees at the Nomination Meeting is preliminary only. No individual becomes a member of the Leadership Team by reason of being selected for the Slate of Nominees. Members of the Leadership Team are formally elected by the Members at the Annual General Meeting.

3 Chief Returning Officer

1. The CRO shall be responsible for conducting any elections and nominations of the CFES.
2. The Chair shall serve as the CRO ex officio.
 - (a) The Board may, by Special Resolution, appoint another individual to serve as CRO for any election.
 - (b) In the case of a conflict of interest, such appointment shall be mandatory.
3. The CRO shall be responsible for the resolution of any conflicts, ambiguities, and interpretations of the electoral and nomination procedures.
4. All decisions of the CRO shall be final.

4 Nominations

1. Nominations of candidates for Leadership Team positions shall occur by vote at a General Meeting in advance of the Annual General Meeting each year. The Members shall vote on a slate of candidates to be put forward for election at the Annual General Meeting.
2. Candidates for any elected position shall first be nominated by ten (10) members of Member Societies.
 - (a) Nomination forms shall be distributed to prospective candidates by the CRO.
3. No candidate shall be nominated for multiple positions in the same election.
4. Eligible candidates must:
 - (a) be at least 18 years of age;
 - (b) not have been declared incapable under the laws of a Canadian province or territory, or by a court in a jurisdiction outside of Canada;
 - (c) be an individual (a corporation cannot be a Director or member of the Leadership Team);

- (d) not be in bankrupt status; and
 - (e) consent in writing to serve as a Director and/or member of the Leadership Team, if elected.
- 5. Voting to determine the slate of candidates shall occur in the manner described in Section 8 of these Electoral Bylaws.
- 6. The selected slate of candidates shall be put forth for election at the Annual General Meeting.
- 7. If a nominated candidate withdraws, becomes ineligible or is unable to stand for election before the Annual General Meeting:
 - (a) that candidate's position on the Slate of Nominees shall become vacant;
 - (b) the Board shall not substitute another candidate on its own authority;
 - (c) the Board may call a further Nomination Meeting if time permits; and
 - (d) if no further Nomination Meeting is held, the position may be filled through a nomination at the Annual General Meeting.
- 8. Upon being nominated, each nominee must fulfill prerequisite Leadership Team nominee transition training activities as prescribed by the Leadership Team prior to the Annual General Meeting. Any nominee who fails to complete such transition training activities shall be deemed to have withdrawn their candidacy and shall be replaced in the manner described in Section 4.7 of these Electoral Bylaws.
- 9. For clarity, a candidate chosen as part of the Slate of Nominees shall not be considered to have been elected, appointed, or approved as a Leadership Team until the candidate has been formally elected at the Annual General Meeting.
- 10. Nothing in these Electoral Bylaws shall preclude a nomination made from the floor at the Annual General Meeting in accordance with section 163(5) of the Canada Not-For-Profit Corporations Act. A candidate nominated in such manner shall be included alongside the Slate of Nominees for election at the Annual General Meeting.

5 Campaigning

- 1. All candidates shall be allowed to produce a document outlining their platforms which shall be distributed to the Members.
 - (a) The format, length, and timeline for submitting this document shall be determined by the CRO and announced prior to the nomination period.
 - (b) The document shall be distributed in both official languages.
- 2. Any other regulations regarding campaigning shall be at the discretion of the CRO.

6 Speeches

1. Candidates shall be allowed to present a speech to the Members of a length and order determined by the CRO.
2. A question period shall be held after all candidates have spoken and shall be mediated by the CRO.
 - (a) Each candidate shall be given the opportunity to answer any and all questions.
3. Translation services shall be provided during the speeches and question period.

7 Election at the Annual General Meeting

1. Where the Slate of Nominees is uncontested and no additional nominations have been made that would result in the number of candidates exceeding the number of available Leadership Team positions, the Slate of Nominees shall be presented together for election by Resolution of the General Meeting. If the Slate of Nominees is approved by a majority of the votes cast, then each candidate on the Slate of Nominees shall be deemed elected.
2. If the Slate of Nominees is not approved by Resolution of the General Meeting, then the name of each nominee named on the Slate of Nominees shall remain eligible to stand as a candidate for election unless they withdraw. The CRO shall reopen nominations from the floor, and the election shall proceed in the manner described in Section 8 below. Nominated candidates must fulfill all eligibility criteria contained in the Constitution and these Electoral Bylaws.
3. Where additional candidates have been nominated or the total number of candidates on the Slate of Nominees exceeds the number of available positions, each candidate shall be voted upon in the manner described in Section 8 below.

8 Voting

1. Voting shall occur by means of secret ballot using a transferable-vote system.
 - (a) For elections to a single position, the Instant-Runoff Voting (IRV) method shall be used.
 - i. In the event that no candidate obtains more than 50% of the vote following this procedure, no candidate shall be declared elected or nominated, and a new election may be held.
 - (b) Where two or more positions are to be filled, the positions shall be filled sequentially using IRV. Following the election or nomination of each candidate, that candidate shall be removed from the remaining ballots, and the process shall be repeated until all positions have been filled.

- i. A candidate must obtain more than 50% of the votes to be declared elected or nominated, as the case may be.
- (c) The National Executive shall submit a ranked list of candidates to the CRO to only be used in the event of a tie.
- 2. The procedures for administering and counting votes shall be established by the CRO in accordance with these Bylaws.
- 3. Votes shall be counted by the CRO.
 - (a) The General Meeting may appoint, by Resolution, a scrutineer, who shall supervise the counting.

9 Ratification

- 1. The General Meeting shall ratify any election or nomination result by Resolution.
- 2. Ratification of election results shall be final and binding.

10 By-elections

- 1. Vacant positions may be filled by a by-election.
- 2. By-election procedures shall be established by the CRO.
- 3. By-election results shall be ratified by Resolution of the following General Meeting.

11 Amendments

- 1. Subject to the Articles, the Board may, by Resolution, make, amend or repeal any provisions of these Bylaws that regulate the activities or affairs of the CFES, except in respect of matters referred to in subsection 197(1) of the Act.
- 2. Any such amendment or repeal shall be effective from the date of the Board Resolution until the next General Meeting where it may be confirmed, rejected or amended by the Members by Resolution.
 - (a) If the amendment or repeal is confirmed or confirmed as amended by the Members, it remains effective in the form in which it was confirmed.
 - (b) The amendment or repeal ceases to have effect if it is not submitted to the Members at the next General Meeting or if it is rejected by the Members at the General Meeting.
 - (c) If an amendment or a repeal ceases to have effect, a subsequent Board resolution that has substantially the same purpose or effect is not effective until it is confirmed, or confirmed as amended, by the Members at a General Meeting.

- (d) This does not apply to any amendment that requires a Special Resolution of the Members under subsection 197(1) (fundamental change) of the Act because such amendments or repeals are only effective when confirmed by the Members.

12 Invalidation

1. The invalidity or unenforceability of any provision of these Bylaws shall not affect the validity or enforceability of the remaining provisions of these Bylaws. If any of the provisions contained in the Bylaws are inconsistent with those contained in the Constitution, the Articles or the Canada Not-For-Profit Corporations Act, the provisions contained in the Constitution, the Articles or the Act, as the case may be, shall prevail.
2. Titles inserted in these Bylaws are included only to facilitate reading and should not affect their interpretation.
3. In these Bylaws and in all other documents of the CFES hereafter passed, unless the context otherwise requires, words importing the singular number shall include the plural number, and vice versa, and references to persons shall include firms and corporations.
4. In the case of a discrepancy between the English and French versions of these Bylaws, the English version takes precedence.

13 Superseding

1. In the event of a conflict between these Bylaws and the following documents, the following documents shall prevail in the order in which they are listed:
 - (a) The Canada Not-For-Profit Corporations Act
 - (b) The Articles
 - (c) The Constitution